

Matter, but only to get my Liberty, which I had not the Wit to keep.

But I protest it was my full Intent, and for Gold; for Gold, for the Benefit of his Majesty and my self, and of those that ventur'd and went with me, with the rest of my Countrymen: But he that knew the Head of the Mine would not discover it, when he saw my Son was slain, but made away himself.

And then turning to the Earl of *Arundel*, he said, My Lord, being in the Gallery of my Ship, at my Departure, I remember your Honour took me by the Hand, and said, You would request one thing of me, which was, That whether I made a good Voyage or a bad, I should not fail, but to return again into *England*; which I then promised you, and gave you my Faith I would; and so I have.

To which my Lord answer'd, and said, It is true, I do very well remember it, they were the very last Words I spake unto you.

Another Slander was raised of me, That I would have gone away from them, and left them at *Guiana*.

But there were a great many worthy Men that accompanied me always; as my Serjeant-Major, *George Raleigh*, and divers others, which knew my Intent was nothing so.

Another Opinion was held of me, that I carried with me to Sea 16000 Pieces, and that was all the Voyage I intended, only to get Money into my Hands.

As I shall answer it before God, I had not in all the World in my Hands, or others to my Use, either directly or indirectly, above a hundred Pounds, whereof, when I went, I gave my Wife twenty-five Pounds thereof; but the Error thereof came, as I perceived, by looking over the Scrivener's Books, where they found the Bills of Adventure arising to a great Sum, so raised that false Report.

Only I will borrow a little time of Mr. Sheriffs to speak of one thing, that doth make my Heart to bleed to hear that such an Imputation should be laid upon me; for it is said, that I should be a Persecutor of the Death of the Earl of *Essex*, and that I stood in a Window over-against him when he suffer'd, and puffed out Tobacco in disdain of him. God I take to Witness, I shed Tears for him when he died; and as I hope to look God in the Face hereafter, my Lord of *Essex* did not see my Face when he suffer'd, for I was afar off in the Armory, where I saw him, but he saw not me.

I confess indeed I was of a contrary Faction, but I know my Lord of *Essex* was a noble Gentleman, and that it would be worse with me when he was gone; for I got the Hate of those which wished me well before,

and those that set me against him, afterwards set themselves against me, and were my greatest Enemies, and my Soul hath many times been grieved that I was not nearer him when he died; because, as I understood afterwards, that he asked for me at his Death, to have been reconciled unto me.

And these be the material Points I thought good to speak of, and I am now at this Instant to render up an Account to God; and I protest, as I shall appear before him, this that I have spoken is true, and I hope I shall be believed.

Then a Proclamation being made, that all Men should depart the Scaffold, he prepared himself for Death; giving away his Hat, his Cap, with some Money, to such as he knew, that stood near him.

And then taking his leave of the Lords, Knights, Gentlemen, and others of his Acquaintance, and amongst the rest, taking his leave of my Lord of *Arundel*, he thanked him for his Company, and intreated him to desire the King that no scandalous Writing to defame him might be published after his Death; saying further unto him, I have a long Journey to go, and therefore I will take my leave.

And then putting off his Doublet and Gown, desired the Headsmen to shew him the Ax; which not being suddenly granted unto him, he said, I prithee let me see it, dost thou think that I am afraid of it? So it being given unto him, he felt along upon the Edge of it, and smiling, spake unto Mr. Sheriff, saying, This is a sharp Medicine, but it is a Physician that will cure all Diseases.

Then going to and fro upon the Scaffold on every Side, he intreated the Company to pray to God to give him Strength.

Then having ended his Speech, the Executioner kneeled down and asked him Forgiveness; the which laying his Hand upon his Shoulder he forgave him.

Then being asked which Way he would lay himself on the Block, he made Answer and said, So the Heart be straight, it is no matter which way the Head lieth: So laying his Head on the Block, his Face being towards the East, the Headsmen throwing down his own Cloak, because he would not spoil the Prisoner's Gown, he giving the Headsmen a Sign when he should strike, by lifting up his Hands, the Executioner struck off his Head at two Blows, his Body never shrinking nor moving. His Head was shewed on each Side of the Scaffold, and then put into a red Leather Bag, and his wrought Velvet Gown thrown over it, which was afterwards conveyed away in a Mourning Coach of his Lady's.

XIX. *The Trials of Robert Winter, Thomas Winter, Guy Fawkes, John Grant, Ambrose Rookwood, Robert Keyes, Thomas Bates, and Sir Everard Digby, at Westminster for High-Treason, being Conspirators in the Gunpowder-Plot.* 27 Jan. 1605. 3 Jac. I.

The COMMISSIONERS were,

The Earl of Nottingham.
The Earl of Suffolk.
The Earl of Worcester.
The Earl of Devonshire.
The Earl of Northampton.

The Earl of Salisbury.
The Lord Chief Justice of England, Sir John Popham.
The Lord Chief Baron of the Exchequer, Thomas Fleming.
Sir Peter Warburton, Knight, one of the Justices of the Common-Pleas.

The Effect of the Indictment.

THAT whereas our Sovereign Lord the King had, by the Advice and Assent of his Council, for divers weighty and urgent Occasions concerning his Majesty, the State, and Defence of the Church and Kingdom of *England*, appointed a Parliament to be holden at his City of *Westminster*; That *Henry Garnet*, Superior of the Jesuits within the Realm of *England*, (called also by the several names of *Wally, Darcy, Roberts, Farmer, and Henry Philips*) *Oswald Tesmond* Jesuit, otherwise called *Oswald Greenwell, John Gerrard* Jesuit, (called also by the several names of *Lee and Brooke*) *Robert Winter, Thomas Winter*, Gentlemen, *Guy Fawkes* Gent. otherwise called *Guy Johnson*, *Robert Keyes* Gent. and *Thomas Bates* Yeoman, late Servant to *Robert Catesby* Esquire; together with the said *Robert Catesby*, and *Thomas Percy* Esquires, *John Wright* and *Christopher Wright* Gentlemen, in open Rebellion and Insurrection against his Majesty, lately slain, and *Francis Tresham* Esq; lately dead; as false Traitors against our said Sovereign Lord the King, did traitorously meet and assemble themselves together; and being so met, the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and other Jesuits, did maliciously, falsely, and traitorously move and persuade as well the said *Thomas Winter, Guy Fawkes, Robert Keyes*, and *Thomas Bates*, as the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright*, and *Francis Tresham*, That our said Sovereign Lord the King, the Nobility, Clergy, and whole Commonalty of the Realm of *England*, (Papists excepted) were Hereticks; and that all Hereticks were accursed and excommunicate; and that none Heretick could be a King; but that it was lawful and meritorious to kill our said Sovereign Lord the King, and all other Hereticks within this Realm of *England*, for the Advancing and Enlargement of the pretended and usurped Authority and Jurisdiction of the Bishop of *Rome*, and for the restoring of the supersti-

tious *Romish* Religion within this Realm of *England*. To which traitorous Persuasions, the said *Thomas Winter, Guy Fawkes, Robert Keyes, Thomas Bates, Robert Catesby, Thomas Percy, John Wright, Christopher Wright*, and *Francis Tresham*, traitorously did yield their Assents: And that thereupon the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and divers other Jesuits; *Thomas Winter, Guy Fawkes, Robert Keyes*, and *Thomas Bates*, as also the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright*, and *Francis Tresham*, traitorously amongst themselves did conclude and agree, with Gunpowder, as it were with one Blast; suddenly, traitorously and barbarously to blow up and tear in pieces our said Sovereign Lord the King, the excellent, virtuous, and gracious Queen *Anne*, his dearest Wife, the most noble Prince *Henry*, their eldest Son, and future Hope and Joy of *England*; and the Lords Spiritual and Temporal, the Reverend Judges of the Realm, the Knights, Citizens and Burgeses of Parliament, and divers other faithful Subjects and Servants of the King in the said Parliament, for the Causes aforesaid to be assembled in the House of Parliament; and all them, without any respect of Majesty, Dignity, Degree, Sex, Age or Place, most barbarously, and more than beastly, traitorously and suddenly to destroy and swallow up. And further did most traitorously conspire and conclude among themselves, That not only the whole Royal Issue-Male of our said Sovereign Lord the King should be destroyed and rooted out; but that the Persons aforesaid, together with divers other false Traitors, traitorously with them to be assembled, should surprize the Persons of the noble Ladies *Elizabeth* and *Mary*, Daughters of our said Sovereign Lord the King, and falsely and traitorously should proclaim the said Lady *Elizabeth* to be Queen of this Realm: And thereupon should publish a certain traitorous Proclamation in the name of the said Lady *Elizabeth*; wherein, as it was especially agreed by and between the said Conspirators, That no mention should be made at the first, of the alteration of Religion established with